Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1448
Claimant:	Michael Maxwell
Adjuster:	Jerry Hanson

2024-10-30
Claim received for a sideswipe that occurred while the insured was changing lanes. The claimant is represented by counsel, and all further contact will go through the attorney's office.

2024-12-04
Reviewed the pohtos submitted with the first notice. They confirm several details of the reported impact, but there are no independent witnesses to the collision itself. The vehicle damage is consistent with the described impact, and no prior damage to the vehicle is known from the file or the carrier's records.

2025-01-26
Confirmed the driver is named on the policy and that nothing in the file suggests the damage happened before coverage began. The claimant has described the seating position at the time of impact, but it is not yet fully clear where in the vehicle they were sitting, so I have requested a follow-up statement from counsel.

2025-03-04
Medical records indicate a whiplash-type injury. The reported injury fits well with the kind and force of this crash, and no earlier injury to the same body area is known. Treatment followed a usual course and tapered off as the patient improved.

2025-04-17
The claimant's statement was taken through counsel. They added a few small details since the first account, but the core account of the lane change and contact has stayed the same arcoss every telling.

2025-05-23
Based on the photos, the vehicle damage, the medical course, and the consistent account, the file supports the claim as presented. Pending receipt of the follow-up seating statement, I am recommending the claim proceed to evaluation.

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Recorded Statement

Claim number:	C-1448
Statement of:	Michael Maxwell
Taken by:	Jerry Hanson
Date:	2024-10-30

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the sideswipe collision you were involved in. Please state your full name for the record.

A: I'd rather just skip that part, if that's okay. You already have my file.

Q: I understand. For the record, can you confirm you were a passenger in the vehicle at the time of the collision?

A: Yes, I was in the fornt passenger seat. My brother was driving.

Q: Where were you traveling when this happened?

A: We were heading through Baytown on the main road, going toward the highway. It was a weekday afternoon, the traffic was moderate.

Q: Can you describe what happened immediately before the impact?

A: We were in the middle lane. The car next to us started drifting over, and then they cut into our lane while changing lanes. My brother tapped the brakes and tried to move right, but the sides of the cars still scraped together. It wasn't a big crash, more of a grinding sound and a hard jolt.

Q: Did you strike any part of the vehicle or your seat during the impact?

A: My head snapped forward and then back against the headrest. I didn't hit the dashboard or the window.

Q: When did you first notice pain or stiffness?

A: Right away I had a stiff neck, but by that evening it was worse. I have headaches now and I can't turn my head fully to the left.

Q: Have you sought medical treatment since the collision?

A: Yes, I went to urgent care the next day and I've been seeing a physical therapist twcie a week since then.

Q: Thank you. Is there anything you would like to add to your statement?

A: Only that I want my medical bills covered, and I'm still having trouble sleeping because of the neck pain.

Q: Thank you for your time. This concludes the statement.